

NATIONAL IDENTITY CARD ACT

Act 60 of 1985 – 11 April 1986

Amended 20/09 (P 42/13 – cio 16/9/13); 18/13 (P 43/13 – cio 16/9/13); 10/17 (NIF); 12/23 (P 34/23 – s 55(b), insofar as it relates to sections 2A(1) and (2) and 2B – cio 9/1/24); 12/23 (P5/24 – S 55(a), (b) insofar as it relates to sections 2A(3) and (4) and 2C, (c), (d), (e), (f), (g), (h), (i), (j), (k), (l), and (m) – cio 19/2/24);

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NATIONAL IDENTITY CARD ACT

1. Short title

This Act may be cited as the National Identity Card Act.

2. Interpretation

In this Act—

"biometric information", in relation to an individual, means data about his external characteristics, including his fingerprints;

[Inserted 20/09 – cio 16/9/13).]

“digital wallet” means a digital application issued by the National Identity Card Unit to store such digital documents as may be prescribed;

[Inserted 12/23 (cio 19/2/24).]

“identity card” means a card issued under section 5(1);

[RR 12/23 (cio 19/2/24).]

“Minister” means the Minister to whom responsibility for the subject of civil status is assigned;

“Mobile ID” means the digital identity document which the holder of an identity card may register under section 5(2B) and which is stored in the digital wallet;
[Inserted 12/23 (cio 19/2/24).]

“MNIC System” means the hardware, software and infrastructure for the registration, personalisation, issuance and post-issuance of the identity card and Mobile ID;
[Inserted 12/23 (cio 19/2/24).]

“NIC number” has the same meaning as in the Civil Status Act;
[Inserted 20/09 – cio 16/9/13).]

“register” means the register kept under section 3;

“Registrar” means the Registrar of Civil Status;
[Amended 12/23 (cio 19/2/24).]

“Unit” means the National Identity Card Unit referred to in section 2A.
[Inserted 12/23 (cio 19/2/24).]

[S. 2 amended by s. 15(a) of Act 20 of 2009 w.e.f. 16 September 2013; s. 55 of Act 12 of 2023 w.e.f. 19 February 2024.]

2A. National Identity Card Unit

(1) There shall be, under the purview of the Prime Minister’s Office, a National Identity Card Unit.

(came into operation on 9 January 2024)

(2) There shall be a Head of the National Identity Card Unit who shall be responsible for the operational management of the Unit.

(came into operation on 9 January 2024)

(3) The Head of the Unit shall, in the discharge of his functions and exercise of his powers, consult the Registrar as and when required in matters relating to the civil status of a person.

(4) The Unit shall –

- (a) ensure the formulation and implementation of adequate security measures for all aspects of and related to the MNIC System;
- (b) keep under periodic review the organisational and security measures implemented in relation to all aspects of and related to the MNIC System;
- (c) cause independent security audits of the MNIC System to be carried out by an independent body;
- (d) implement the recommendations made by the independent body having carried out the independent security audit of the MNIC System;
- (e) have such functions and powers as may be determined by the Secretary for Home Affairs for the administrative and functional efficiency of the organisational framework relating to the MNIC

System.

[S 2A. inserted by s. 55 of Act 12 of 2023 w.e.f. 19 February 2024.]

2B. Staff of National Identity Card Unit

(1) (a) The Secretary to Cabinet and Head of the Civil Service may, subject to the approval of the Public Service Commission, designate –

- (i) a suitably qualified public officer or person to head the Unit;
- (ii) such public officers or persons as may be necessary to assist the Unit.

(b) The Secretary to Cabinet and Head of the Civil Service may employ on contract, on such terms and conditions as he may determine, such suitably qualified persons, as may be necessary to assist the Unit in the proper discharge of its functions.

(came into operation on 9 January 2024)

[S 2B. inserted by s. 55 of Act 12 of 2023 w.e.f. 19 February 2024.]

2C. Independent Security Audits

The National Identity Card Unit shall appoint, on such terms and conditions as may be prescribed, an independent body to carry out, at such intervals, as may be prescribed, an independent security audit of the MNIC System for the purpose of assessing the adequacy of the security measures implemented in relation to the MNIC System.

[S 2C. inserted by s. 55 of Act 12 of 2023 w.e.f. 19 February 2024.]

3. Register to be kept

(1) The Head of the Unit shall cause to be kept at such office as the Minister may designate, a register in which shall be recorded particulars of the identity of every citizen of Mauritius.

[Amended 12/23 (cio 19/2/24).]

(2) The particulars required to be recorded in respect of any person under subsection (1) shall be—

- (a) the sex and names of that person; and
- (b) such other reasonable or necessary information as may be prescribed regarding the identity of the person.

(3) The register to be kept under subsection (1) shall be in electronic form or such other form as may be prescribed.

[Amended 20/09 – cio 16/9/13).]

[S. 3 amended by s. 15(b) of Act 20 of 2009 w.e.f. 16 September 2013; s. 55 of Act 12 of 2023 w.e.f. 19 February 2024.]

4. Duty to be registered

(1) (a) Subject to paragraph (b), every person who is a citizen of Mauritius shall, within 6 months of attaining the age of 18 and on such form as may be prescribed, apply for an identity card at any office designated by the Head of the Unit.

[Amended 20/09 – cio 16/9/13); 18/13 (cio 16/9/13); 12/23 (cio 19/2/24).]

(b) Where a person –

- (i) is not a resident of Mauritius; or
- (ii) is unable to comply with paragraph (a) on account of serious illness, as certified by a medical practitioner in the public service, or on any other compelling and reasonable ground,

he may apply for an identity card in such manner and within such period of attaining the age of 18 as the [Head of the Unit](#) may determine.

[Added 18/13 – cio 16/9/13); Amended 12/23 (cio 19/2/24).]

(2) Every person who applies for an identity card shall —

- (a) produce his birth certificate or his certificate of registration or naturalisation as a citizen of Mauritius, as the case may be;
- (b) produce such other documents as the Head of the Unit may require;
[Amended 12/23 (cio 19/2/24).]
- (c) allow his fingerprints, and other biometric information about himself, to be taken and recorded; and
- (d) allow himself to be photographed,

for the purpose of the identity card.

[Repealed and replaced 20/09 – cio 16/9/13).]

(3) Subsection (2)(c) shall not apply to a person who is certified by a medical practitioner in the public service to be unable to provide his biometric information by reason of any permanent infirmity or permanent disability.

[Added 20/09 – cio 16/9/13).]

[S. 4 amended by s. 15(c) of Act 20 of 2009 w.e.f. 16 September 2013; s. 2(a) and 4 of Act 18 of 2013 w.e.f. 16 September 2013; [s. 55 of Act 12 of 2023 w.e.f. 19 February 2024.](#)]

5. National Identity Card

(1) Every person who makes an application under this Act shall be issued with an identity card.

(2) Every identity card shall contain, in electronic form or otherwise —

[Amended 18/13 – cio 16/9/13).]

- (a) the surname, first name and, where applicable, the surname at birth of the person;

[Amended 18/13 – cio 16/9/13).]

- (b) the date of birth of the person;
- (c) the gender of the person;
- (d) the photograph of the person;
- (e) the signature or thumbprint of the person;

- (f) the NIC number;
- (g) the date of issue; and
- (h) such other information as may be prescribed.

[Repealed and replaced 20/09 – cio 16/9/13).]

(2A) Notwithstanding subsection (2)(e), an identity card need not contain –

- (a) the signature of the person where he is unable to sign his name; and
- (b) the thumbprint of the person where he is certified by a medical practitioner in the public service to be unable to provide his thumbprint by reason of any permanent infirmity or permanent disability.

[Inserted 18/13 – cio 16/9/13).]

(2B) Every holder of an identity card may, through such electronic format as may be prescribed, register for a Mobile ID.

[Inserted 12/23 (cio 19/2/24).]

(2C) Every Mobile ID shall contain and display such information as may be prescribed.

[Inserted 12/23 (cio 19/2/24).]

(3) Every identity card and Mobile ID shall be —

- (a) valid for such period; and
- (b) renewed by the holder in such form and manner,

as may be prescribed.

[Added 20/09 (cio 16/9/13); amended 12/23 (cio 19/2/24).]

(4) Every holder of an identity card shall apply for a new identity card on the occurrence of such events or for such reasons as may be prescribed.

[Added 20/09 – cio 16/9/13).]

(5) Every identity card and Mobile ID shall have such necessary security features as the Unit may determine for the prevention of tampering of information contained on or in the identity card or Mobile ID.

[Added 12/23 (cio 19/2/24).]

[S. 5 amended by s. 15(d) of Act 20 of 2009 w.e.f. 16 September 2013 s. 4(b) of Act 18 of 2013 w.e.f. 16 September 2013; s. 55 of Act 12 of 2023 w.e.f. 19 February 2024.]

6. Change of residence

(1) Where any person issued with an identity card changes his residence, he shall, within 28 days of the occurrence, notify the change at any office designated by the Head of the Unit or in such manner as may be prescribed.

[Amended 20/09 – cio 16/9/13); 18/13 – cio 16/9/13); 12/23 (cio 19/2/24).]

(2) Any change of residence reported under subsection (1) shall be in such form as may be prescribed.

[Amended 20/09 – cio 16/9/13).]

[S. 6 amended by s. 15(e) of Act 20 of 2009 w.e.f. 16 September 2013; s 55 of Act 12 of 2023 w.e.f. 19 February 2024.]

7. Production of identity card or Mobile ID

[Amended 12/23 (cio 19/2/24).]

(1) Every person may –

- (a) in reasonable circumstances and for the purpose of ascertaining the identity of another person; or
- (b) where he is empowered by law to ascertain the identity of another person,

request that other person to produce his identity card or Mobile ID where that person is a citizen of Mauritius.

[Repealed and replaced 18/13 – cio 16/9/13); Amended 12/23 (cio 19/2/24).]

(1A) Where a person is required to produce his identity card or Mobile ID in accordance with subsection (1)(b), he shall –

[Amended 12/23 (cio 19/2/24).]

- (a) forthwith produce his identity card or Mobile ID to the person making the request; or

[Amended 12/23 (cio 19/2/24).]

- (b) where he is not in possession of his identity card or Mobile ID, produce his identity card within such period, to such person and at such place as may be directed by the person making the request.

[Inserted 18/13 – cio 16/9/13); Amended 12/23 (cio 19/2/24).]

(2) Where any person is required to produce evidence of his identity, it shall be sufficient for that purpose if he produces his identity card.

[S. 7 amended by s. 2(c) of Act 18 of 2013 w.e.f. 16 September 2013; s 55 of Act 12 of 2023 w.e.f. 19 February 2024.]

7A. Lost or mislaid identity card

(1) Any person who –

[Amended 12/23 (cio 19/2/24).]

- (a) finds an identity card issued in the name of another person who is unknown to him; or
- (b) after being issued with a new identity card by reason of his identity card being lost, finds the original identity card,

shall, as soon as practicable within 7 working days, return the identity card found to any office designated by the Head of the Unit.

[Amended 12/23 (cio 19/2/24).]

(2) Any holder of an identity card who loses or misplaces his identity card shall report the matter to the Police and the Head of the Unit in such manner and within such time as may be prescribed.

[Added 12/23 (cio 19/2/24).]

(3) The Head of the Unit shall, upon a report made to him under subsection (2), deactivate the identity card.

[Added 12/23 (cio 19/2/24).]

[S. 7A inserted by s. 2(d) of Act 18 of 2013 w.e.f. 16 September 2013; amended by s. 55 of Act 12 of 2023 w.e.f. 19 February 2024.]

7B. Lost or mislaid Mobile ID

Any person who loses or misplaces a device storing his Mobile ID shall deactivate his Mobile ID within such time and in such manner as may be prescribed.

[S 7B inserted by s. 55 of Act 12 of 2023 w.e.f. 19 February 2024.]

8. Cancellation of identity card

(1) Where the Minister is satisfied that an identity card—

- (a) was obtained by means of fraud, false representation or the concealment of any material fact;
- (b) was issued by mistake;
[Amended 12/23 (cio 19/2/24).]
- (c) bears a number which must be cancelled; or
[Amended 12/23 (cio 19/2/24).]
- (d) was issued to a person who is no longer a citizen of Mauritius as a result of a deprivation or renunciation of his Mauritian citizenship under the Mauritius Citizenship Act;
[Inserted 12/23 (cio 19/2/24).]

the Minister may order the cancellation of the card and require that it be surrendered.

(2) Every person who is required under subsection (1) to surrender an identity card shall surrender it unless he can satisfy the Minister that he is no longer in possession of the card.

(3) The Head of the Unit shall, upon the registration of death of a person, cancel the identity card belonging to that person.

[Added 12/23 (cio 19/2/24).]

(4) Where an identity card has been cancelled under subsection (1) or (3), the Head of the Unit shall deactivate the Mobile ID registered and corresponding to that identity card, if any.

[Added 12/23 (cio 19/2/24).]

[S. 8 amended by s. 55 of Act 12 of 2023 w.e.f. 19 February 2024.]

9. Offences

(1) Every person who—

- (a) forges, falsifies, defaces or mutilates an identity card or the register;
- (b) makes a false entry or alters in any material particular any entry in the register or an identity card;
- (c) knowingly makes use of an identity card, which has been altered, forged, defaced or mutilated;

- (d) for the purpose of obtaining an identity card, personates a fictitious or inexistent person, or gives a false name;
- (e) obtains or seeks to obtain an identity card in a name other than the name which appears in his birth certificate; ~~or~~
- (f) without lawful authority or reasonable excuse, has in his possession **or makes use of** an identity card not belonging to him; or
[Amended 18/13 (cio 16/9/13); 12/23 (cio 19/2/24).]
- (g) produces any false document for the purpose of being issued with an identity card,
[Added 18/13 (cio 16/9/13).]

shall commit an offence.

(2) Every person who contravenes this Act or any regulations made under it shall commit an offence.

(3) Every person who commits an offence under this Act or any regulations made under this Act shall, on conviction, be liable to a fine not exceeding 100, 000 rupees and to imprisonment for a term not exceeding 5 years.

[Amended 20/09 – cio 16/9/13).]

[S. 9 amended by s. 4 and Second Sch. of Act 5 of 1999 w.e.f. 1 July 1999; s. 15(f) of Act 20 of 2009 w.e.f. 16 September 2013; s. 2(e) of Act 18 of 2013 w.e.f. 16 September 2013; **s. 55 of Act 12 of 2023 w.e.f. 19 February 2024.**]

10. Regulations

(1) Subject to subsection (2), the Minister may make such regulations as he deems necessary for the purposes of this Act.

(2) Where the Minister is of the opinion that the particulars of an identity card have to be recorded in a document drawn up by a notary, public officer, a judicial officer or some other person, he may make such regulations in regard thereto as he deems necessary.

(3) Regulations made under subsection (1) may provide for –

- (a) the levying of fees and the taking of charges;**
- (b) card characteristics;**
- (c) card usage; and**
- (d) Mobile ID.**

[RR 12/23 (cio 19/2/24).]

[S 10 amended by s. 55 of Act 12 of 2023 w.e.f. 19 February 2024.]

10A. Transitional provisions

(1) Subject to subsection (2), every holder of an existing identity card shall, within 12 months of the commencement of section 15 of the Finance (Miscellaneous Provisions) (No. 2) Act 2009 or such other period as may be prescribed, apply for a new identity card at any place designated by the Registrar.

(2) Every holder of an existing identity card who resides abroad shall, on such

opportunity and at such time as may be convenient to him, apply for a new identity card at any office designated by the Registrar.

(3) Any person who, without reasonable excuse, fails to comply with subsection (1) shall commit an offence and shall, on conviction, be liable to a fine not exceeding 100,000 rupees and to imprisonment for a term not exceeding 5 years.

(4) An application under subsection (1) or (2) shall be made in such form and manner as may be prescribed.

(5) Notwithstanding the National Identity Card Regulations 1986, an existing identity card shall remain valid for a period of 12 months from the commencement of section 15 of the Finance (Miscellaneous Provisions) (No. 2) Act 2009 or such other period as may be prescribed.

(6) Every person to whom a new identity card is issued shall, at the time the card is issued to him, surrender his existing identity card.

(7) In this section —

"existing identity card" means an identity card issued before the commencement of section 15 of the Finance (Miscellaneous Provisions) (No. 2) Act 2009.

[S. 10A inserted by s. 15(g) of Act 20 of 2009 w.e.f. 16 September 2013.]

11. Designation of office

Where the [Head of the Unit](#) designates any office or place under this Act, he shall forthwith cause notice of such designation to be given in the *Gazette*.

[S. 11 added by s. 2(f) of Act 18 of 2013 w.e.f. 16 September 2013; [amended by s 55 of Act 12 of 2023 w.e.f. 19 February 2024.](#)]

12. Collection and processing of data to be subject to Data Protection Act

The collection and processing of personal data, including biometric information, under this Act shall be subject to the provisions of the Data Protection Act.

[S. 12 added by s. 2(f) of Act 18 of 2013 w.e.f. 16 September 2013.]

13. —
